

To: _____

Date

Address: _____

participant/case info review zone

Dear: _____

You have been identified as a victim in Criminal Case Number _____
in the Magistrate/Circuit Court of _____ County, pursuant to *W. Va. Code*
§61-11-26(f). I am required to provide you NOTICE that the defendant,
_____, has filed a *Petition to Expunge Criminal Records*, seeking
to expunge his/her misdemeanor or felony conviction(s).

You are hereby notified that should you oppose this request, you must file your written
opposition or objections with the circuit clerk's office, with a copy to the petitioner and to the
prosecuting attorney, using the enclosed *Notice of Opposition*, within 30 days of the receipt of this
letter. The petitioner will then have thirty (30) days to reply.

If you file a Notice of Opposition, you will also be given notice of the hearing and may appear
to voice your opposition and protect your interest, should you choose. Otherwise, you will not
receive notice of a hearing. Regardless, you will receive a copy of the final order either granting or
denying the petition at the conclusion of the case.

Please feel free to contact this office should you have any questions or concerns.

Respectfully,

Prosecuting AttorneyAddress: _____

signature/date review zone

Phone: _____

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

IN RE: Criminal Offense Reduction

Circuit Court Case No. _____ -P-

participant/case info review zone

Criminal Case No. _____ -F-

Petitioner (First/Middle/Last)

Criminal Case No. _____ -M-

**VICTIM'S NOTICE OF OPPOSITION TO
PETITION FOR CRIMINAL OFFENSE EXPUNGEMENT**

W. Va. Code §61-11-26 and §61-11-26a

Pursuant to *W. Va. Code § 61-11-26(f)*, you have been identified as a victim in Criminal Case Number

_____ in the Magistrate/Circuit Court of _____ ,

wherein _____ is the defendant. The defendant has requested that the

misdemeanor or felony conviction (s) be expunged. If you oppose this action, please set forth below the

reasons for your opposition and return this form and accompanying documentation to the circuit clerk's office,

with a copy to the petitioner and to the prosecuting attorney, within thirty (30) days of receipt of the petition.

The petitioner may file a reply no later than thirty (30) days after service of your Notice of Opposition.

Reasons for Opposition (add additional pages, if necessary):

signature/date review zone

Date

Signature of Identified Victim

participant/case info review zone

signature/date review zone